CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E3FB97191
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: Calkins, James C. <jcalkins@brobeck.com>
Sent: Wed, 10 Jan 2001 06:39:00 -0800 (PST)
To: mark.taylor@enron.com <mark.taylor@enron.com>
Cc: tommy.j.yanowski@enron.com <tommy.j.yanowski@enron.com>, jim.gearhart@enron.com <jim.gearhart@enron.com>, patrick.desouza@ecoutlook.com <patrick.desouza@ecoutlook.com>, jocelynn.kilburne@ecoutlook.com <jocelynn.kilburne@ecoutlook.com>, Lyons, J. Matthew <mlyons@brobeck.com>, DeBerardine, Robert <rdeberardine@brobeck.com>, Tyndall, Steven M. <styndall@brobeck.com>
Subject: ECOutlook initial technology and IP due diligence request

Dear Mark,

I'm an intellectual property attorney in Brobeck's Business and Technology group in Austin. As I think you're aware, Brobeck is providing legal representation to ECOutlook in the deal currently being negotiated between Enron and ECOutlook regarding ECOutlook's potential purchase of a particular Enron technology application. You've been identified as Enron's inside counsel contact for this potential deal.

Attached please find ECOutlook's initial technology and intellectual property due diligence request for the potential transaction. Based on the initial due diligence response we may have some corporate-related due diligence and some additional tech/IP due diligence requests.

Our understanding is that ECOutlook and Enron have mutually set a goal of closing this transaction by January 31. In order to meet this deadline, we need to have substantially completed the due diligence review by the end of next week (i.e., Jan. 19), which means we need to receive your response to this request very soon.

I look forward to working with you as this deal progresses.

Best regards,

Jim Calkins
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- IP due diligence memo.doc

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